

- be, separated from the railway servant by a decree or order of a competent court;
- (ii) son or daughter or step-son or step-daughter of the railway servant and wholly dependent on him, but does not include a child or a step-child who is no longer in any way dependent on the railway servant or of whose custody the railway servant has been deprived by or under any law;
- (iii) any other person related whether by blood or marriage to the railway servant or to the railway servant's wife or husband, and wholly dependent on the railway servant.

Railway Ministry's decision. -- The son/daughter will come within the purview of this rule only if he or she is dependent upon the Railway servant.

(E(D&A) 77 GS1-13 dot. 14-7-1977.)

3. **General.** -- (1) Every railway servant shall at all times-

- (i) maintain absolute integrity;
- (ii) maintain devotion to duty;
- (iii) do nothing which is unbecoming of a railway servant;
- (iv) commit himself to and uphold the supremacy of the Constitution and democratic values;
- (v) defend and uphold the sovereignty and integrity of India, the security of the State, public order, decency and morality;
- (vi) maintain high ethical standards and honesty;
- (vii) maintain political neutrality;
- (viii) promote the principles of merit, fairness and impartiality in the discharge of duties;
- (ix) maintain accountability and transparency;
- (x) maintain responsiveness to the public, particularly to the weaker section;
- (xi) maintain courtesy and good behaviour with the public;
- (xii) take decisions solely in public interest and use or cause to use public resources efficiently, effectively and economically;
- (xiii) declare any private interests relating to his public duties and take steps to resolve any conflicts in a way that protects the public interest;
- (xiv) not place himself under any financial or other obligations to any individual or organisation which may influence him in the performance of his official duties;

- (xv) not misuse his position as railway servant and not take decisions in order to derive financial or material benefits for himself, his family or his friends;
- (xvi) make choices, take decisions and make recommendations on merit alone;
- (xvii) act with fairness and impartiality and not discriminate against anyone, particularly the poor and the under-privileged sections of society;
- (xviii) refrain from doing anything which is or may be contrary to any law, rules, regulations and established practices;
- (xix) maintain discipline in the discharge of his duties and be liable to implement the lawful orders duly communicated to him;
- (xx) maintain confidentiality in the performance of his official duties as required by any laws for the time being in force, particularly with regard to information, disclosure of which may prejudicially affect the sovereignty and integrity of India, the security of the State, strategic, scientific or economic interests of the State, friendly relation with foreign countries or lead to incitement of an offence or illegal or unlawful gain to any person;
- (xxi) perform and discharge his duties with the highest degree of professionalism and dedication to the best of his abilities.

(Authority - Railway Board's letter No. E(D&A) 2014 GS1-3 dated 12.01.2015)..acs no.125

(2) (i) Every railway servant holding a supervisory post shall take all possible steps to ensure the integrity and devotion to duty of all railway servants for the time being under his control and authority;

(ii) no railway servant shall, in the performance of his official duties, or in the exercise of powers conferred on him, act otherwise than in his best judgement except when he is acting under the direction of his official superior;

(iii) the direction of the official superior shall ordinarily be in writing, and where the issue of oral direction becomes unavoidable, the official superior shall confirm it in writing immediately thereafter; and

(iv) a railway servant who has received oral direction from his official superior, shall seek confirmation of the same in writing as early as possible, whereupon it shall be the duty of the official superior to confirm the direction in writing.

Explanation I. —A railway servant who habitually fails to perform the task assigned to him within the time set for the purpose and with the quality of performance expected of him shall be deemed to be lacking in devotion to duty within the meaning of clause (ii) of sub-rule (1).

Explanation II. —Nothing in clause (ii) of sub-rule (2) shall be construed as empowering a railway servant to evade his responsibilities by seeking instructions

from or approval of, a superior officer or authority when such instructions are not necessary under the scheme of distribution of powers and responsibilities.

Railway Ministry's decision. —In the light of the provisions of Rule 3(2)(ii) it is impressed upon all Railway servants that—

- (i) Oral instructions should not, as far as possible, be issued by senior officers to their subordinates;
- (ii) if the oral instructions are issued by any senior officer they should be confirmed by him in writing immediately thereafter;
- (iii) if a junior officer seeks confirmation to the oral instructions given by the senior, the latter should confirm it in writing, whenever such confirmation is sought;
- (iv) a junior officer who has received oral orders from his superior officer should seek confirmation in writing as early as practicable;
- (v) whenever a member of the personal staff of Minister communicates an oral order on behalf of the Minister, it should be confirmed by him in writing immediately thereafter;
- (vi) If junior officer received oral instructions from the Minister or from his personal staff and the orders are in accordance with the normal rules, regulations or procedures, they should be brought to the notice of the Secretary, or the concerned Members of the Railway Board or the Head of the Department, as the case may be, for information.
- (vii) if a junior officer received oral instructions from the Minister or from his personal staff and the orders are not in accordance with the norms, rules, regulations or procedures, they should seek further clear orders from the secretary, the concerned Member of the Railway Board or the Head of the Department, as the case may be, about the line of action to be taken, stating clearly that the oral instructions are not in accordance with the rules, regulations, norms, or procedures.

(No. E(D&A) 78 GSI-9 dt. 14-12-78).

3 A. Promptness and Courtesy

No Railway servant shall—

- (a) in the performance of his official duties, act in a discourteous manner;
- (b) in his official dealings with the public or otherwise adopt dilatory tactics or willfully cause delays in disposal of the work assigned to him.

3 B. Observance of Government's policies.

Every railway servant shall, at all times—

- (i) act in accordance with the Government's policies regarding age of marriage, preservation of environment, protection of wildlife and cultural heritage;
- (ii) observe the Government's policies regarding prevention of crime against women.

(Authority: Railway Board's letter No. E (D & A) 95 GS1-5 dt.14.9.95)

3 C. Prohibition of sexual harassment of working women.

- (1) No Railway servant shall indulge in any act of sexual harassment of any woman at any work place.
- (2) Every Railway servant who is incharge of a work place shall take appropriate

steps to prevent sexual harassment to any woman at the work place.

Explanation. - (I) For the purpose of this rule,-

- (a) "sexual harassment" includes any one or more of the following acts or behaviour (whether directly or by implication) namely :-
 - (i) Physical contact and advances; or
 - (ii) a demand or request for sexual favours; or
 - (iii) making sexually coloured remarks; or
 - (iv) showing pornography; or
 - (v) any other unwelcome physical, verbal, non-verbal conduct of a sexual nature.
- (b) the following circumstances, among other circumstances, if it occurs or is present in relation to or connected with any act or behaviour of sexual harassment may amount to sexual harassment :-
 - (i) implied or explicit promise of preferential treatment in employment; or
 - (ii) implied or explicit threat of detrimental treatment in employment; or
 - (iii) implied or explicit threat about her present or future employment status; or
 - (iv) interference with her work or creating an intimidating or offensive or hostile work environment for her; or
 - (v) humiliating treatment likely to affect her health or safety.
- (c) "workplace" includes,-
 - (i) any department, organisation, undertaking, establishment, enterprise, institution, office, branch or unit which is established, owned, controlled or wholly or substantially financed by funds provided directly or indirectly by the Central Government;
 - (ii) hospitals or nursing homes;
 - (iii) any sports institute, stadium, sports complex or competition or games venue, whether residential or not used for training, sports or other activities relating thereto;
 - (iv) any place visited by the employee arising out of or during the course of employment including transportation provided by the employer for undertaking such journey;
 - (v) a dwelling place or a house."